# 25STCV33205 25STCV33205

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-04

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MOTION FOR ATTORNEY FEES

The Court tenders the following tentative decision in the matter Jose Vela v. General Motors, LLC, Los Angeles County Superior Court case number 25STCV33205, set for hearing on September 4, 2026. Jose Vela (Plaintiff) moves for an award of attorney's fees and costs in the amount of $19,826.05 against General Motors, LLC (Defendant). Plaintiff's motion is granted in the partial amount of $14,536.05.

A.
Legal Standard

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.) If the buyer prevails on an action under the Song-Beverly Consumer Warranty Act, "the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

"In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) The court may determine fees pursuant to the section upon notice and motion by a party. The party prevailing on the contract is that "who recovered a greater relief in the action on the contract." (Id., § 1717, subd. (b)(1).) The court may also determine that there is no prevailing party.

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488.)

In determining whether the requested attorney's fees are "reasonable," the Court's "first step involves the lodestar figure—a calculation based on the number of hours reasonably expended multiplied by the lawyer's hourly rate. The lodestar figure may then be adjusted, based on consideration of facts specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Gorman v. Tassajara Development Corp. (2008) 178 Cal.App.4th 44, 92.) In determining whether to adjust the lodestar figure, the Court may consider the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm LLC v. Teitler (2008) 162 Cal.App.4th 770, 774 (EnPalm).)

Under Civil Code section 1794, courts must first make an initial determination of the actual time expended before ascertaining whether that amount of time and the amount thus charged are reasonable. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 34.) In making such a determination, courts are to consider the complexity of the case, procedural demands, skill exhibited by counsel, and results achieved. (Ibid.) If the time expended or resulting charge are not reasonable under these circumstances, the trial court must award a lesser amount. (Ibid.) It is the prevailing buyer’s burden to show that the fees incurred were allowable, reasonably necessary to the litigation, and reasonable in amount. (Ibid.)

B. Discussion

Plaintiff moves for a total award of attorney’s fees and costs in the amount of $19,826.05, consisting of $10,580 in fees related to the underlying action, a 0.5 multiplier on those fees for an additional $5,290, $2,500 related to this motion, and $1,456.05 in costs and expenses. As a prevailing party, under the Song-Beverly Act Plaintiff is entitled to attorney’s fees based on actual time expended. (Civ. Code, § 1794, subd. (d).)

Counsel is awarded $13,080 in attorney’s fees.

Defendant raises many objections to the fees claimed by Plaintiff as excessive. The Court will address each in turn. First, Defendant argues that counsel is not entitled to recover $1,620 for work which occurred before the filing of Plaintiff’s complaint. A buyer is entitled to attorney’s fees “determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of” a Song-Beverly Action. (Civ. Code, § 1794, subd. (d).) Attorney’s fees relating to the commencement of an action would include those fees incurred prior to filing the complaint. The language of section 1794 does not preclude such fees as Defendant suggests. The Court finds $1,620 related to pre-commencement work reasonable. Thus, the Court declines to strike these fees.

Second, Defendant challenges various tasks by counsel, including the drafting of the complaint, an initial disclosures letter, and a meet and confer letter. Defendant argues that these tasks could not have taken as long as the billing reflects because Lemon Law matters are highly formulaic and counsel already possessed templates for all relevant motions. The Court finds that the hourly totals presented by Plaintiff are reasonable even if such templating was proven. Counsel still reasonably needed to spend time ensuring that documents were properly prepared and analyzing Defendant’s own templated discovery demands to ensure that they were indeed consistent with prior filings. Thus, the Court finds these fees reasonable as well, with no category appearing excessive.

Third, Defendant challenges $1,875 billed for case file reviews. Specifically, Plaintiff claims fees for 60- and 90-day case reviews which allegedly took an hour each despite there being almost no billing activity between those reviews. But as Plaintiff points out, review of a case file is competent litigation strategy. Developments may occur with or without intervening motion practice, and it behooves counsel to review the status of the case to determine how resources should be invested. Thus, the Court finds these fees reasonable as well.

Fourth, Defendant challenges 0.7 hours of administrative coordination activity as excessively billed. The relevant work consisted of serving a deposition objection, proposing deposition dates, calling a client about deposition availability, and confirming a deposition-preparation call. The Court finds that these tasks could reasonably take 0.7 hours. The same analysis applies to the 0.4 hours billed for drafting a case management statement, 0.8 hours billed for communications regarding settlement processing, and 2.7 hours billed for deposition preparation.

Fifth, Defendant challenges the $2,500 in anticipated attorney's fees with respect to the present motion, including reviewing Defendant's opposition and drafting a reply. However, based on Defendant's fervent opposition, such an amount is reasonable. Counsel compiled great amounts of evidence to support its fee claims, carefully drafted the initial motion, and drafted a very detailed reply addressing every challenge made by Defendant to the fee motion. Thus, these hours are properly justified as well.

Counsel is not entitled to a fee multiplier.

Plaintiff seeks a lodestar multiplier of 1.5. Counsel bases this on the complexities of the present case and counsel's decision to advance litigation costs. However, the present action is a highly formulaic Song-Beverly case which does not justify a positive multiplier based on complexity. Nor is counsel's decision to advance litigation costs a dispositive factor. Thus, the Court does not award a multiplier. Accordingly, Plaintiff's requested fees are reduced by $5,290. Accordingly, the Court awards Plaintiff $13,080 in attorney's fees.

Plaintiff is awarded $931.05 in costs.

Plaintiff also seeks reimbursement for costs and expenses incurred in the amount of $931.05, along with $525 in anticipated costs. Defendant challenges the costs as not properly incurred. With respect to the $931.05 in costs billed, Plaintiff has presented sufficient evidence that they were incurred. (Maissian Decl., Ex. B.) And with respect to the additional $525, Plaintiff represents that he intends to have a court reporter at the hearing for this fee motion. The Court finds this reasonable. Accordingly, Plaintiff is awarded $1,456.05 in costs. In summary, the Court awards Plaintiff $13,080 in attorney's fees, does not award a lodestar multiplier, and awards Plaintiff $1,456.05 in costs. Thus, Defendant is ordered to pay $14,536.05 in attorney's fees and costs ([$13,080 in fees] + [$1,456.05 in costs] = $14,536.05).

Conclusion:

The Court grants Plaintiff's motion in the partial amount of $14,536.05.